



POLICE DEPARTMENT

Februaury 16, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Hector Gonzalez
Tax Registry No. 911068
26 Precinct
Disciplinary Case No. 85671/09

The above-named member of the Department appeared before the Court on October 29, 2010, charged with the following:

1. Said Police Officer Hector Gonzalez, assigned to the 26th Precinct, on or about June 24, 2008, signed a Criminal Court affidavit without reviewing it for its accuracy, to wit: signed the Criminal Court affidavit as the arresting officer who observed the criminal activity and recovered property when, in fact, he was the assigned officer and had not made any observations and did not recover any property.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

The Department was represented by Daniel Maurer, Esq., Department Advocate's Office, and the Respondent was represented by Stuart London, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty

EVIDENCE IN MITIGATION

The Respondent, a 19-year member of the Department, was currently assigned to the 26 Precinct. On or about June 24, 2008, Lieutenant Feliz summoned him to the 28 Precinct station house. Once there, he was assigned an arrest. Feliz and Police Officer Jagura informed the Respondent that they witnessed an individual driving while intoxicated in front of a liquor store in the vicinity of West 126th Street and Amsterdam Avenue (Manhattan). The Respondent was also informed that cocaine residue was recovered.

The Respondent prepared the driver's Intoxicated Driver Examination worksheet (see Respondent's Exhibit [RX] B). The Respondent accurately wrote that he observed the driver inside the 28 Precinct station house, unable to stand and with alcohol on his breath.

The Respondent admitted that he did not witness the intoxication while the driver was behind the wheel.

The Respondent also prepared the On Line Booking System Arrest Worksheet (the "On Line" or OLBS) (RX A). There, he accurately indicated that he was the assigned officer, not the arresting officer.

RX C was the property clerk's invoice for the cocaine residue. Police Officer Laperuta was listed as the "Arresting/Assigned Officer." It was the Respondent's understanding that Laperuta was the officer that recovered the contraband.

The Respondent admitted that he signed the Criminal Court affidavit (RX D), which indicated that he observed the driver behind the wheel of the vehicle, with the ignition running,

that his eyes were watery and bloodshot, that his face was flushed, that his speech was slurred, that he had an alcoholic odor on his breath, and that he was unsteady on his feet. The Respondent claimed that this was a mistaken oversight due to his tiredness at the time he signed the affidavit.

On cross-examination, the Respondent stated that either Jagura or Laperuta drafted the motor vehicle invoice introduced as Department's Exhibit (DX) 1. The Respondent admitted signing this voucher without reviewing it for its accuracy.

Upon questioning by the Court, the Respondent stated that he believed he told the reviewing assistant district attorney (ADA) all the events that transpired with regard to this matter, including that he was informed by other officers about the conduct at the scene. He stated that the typical practice was for the arrest paperwork to be faxed to the District Attorney's (DA) Office.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Department on January 13, 1992. Information from his personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has pleaded Guilty to signing a Criminal Court affidavit without reviewing it for its accuracy. He stated that he was assigned a DWI arrest from a neighboring command. He filled out several Department documents for the arrest, including the Intoxicated Driver Examination sheet (RX B). There, he correctly indicated that he was informed by other

officers of certain information, such as the observation that the defendant was behind the wheel with the keys in the ignition and the engine running. In other parts, he used the passive voice in stating that the defendant "was observed" taking certain actions. He used this language in the On Line (RX A) as well. On RX B, the Respondent correctly checked off "No" to the question of whether the arresting officer saw the defendant operate the vehicle.

The Criminal Court complaint (RX D), however, stated that the deponent – here, the Respondent – observed the defendant operating the vehicle. It should have stated that the deponent was informed by other officers of that fact. The Respondent testified that he was tired and failed to review the complaint, which was prepared by an ADA and faxed to the command. He asserted that he told the ADA that he was only the assigned officer and had not observed the defendant's operation of the vehicle.

Generally, a criminal court complaint is the first document seen by the arraigning judge and defense attorney. It is not merely "paperwork," but an affidavit and accusatory instrument containing sworn assertions that can be questioned in court. Its accuracy is essential because a defense attorney will exploit any inaccuracies or inconsistencies. The lateness of the hour was not an excuse for the Respondent's failure to review the affidavit, although the ADA was also responsible for reviewing the document and ensuring with the Respondent that he personally had observed the driver's on-scene conduct.

The Department asked for a penalty of the forfeiture of 45 vacation days in this matter. As the Court pointed out, however, there is only one specification preferred against the Respondent, so the maximum available forfeiture is the loss of 30 days' pay, see New York City Administrative Code § 14-115 (a), New York State Civil Service Law § 75 (3-a).

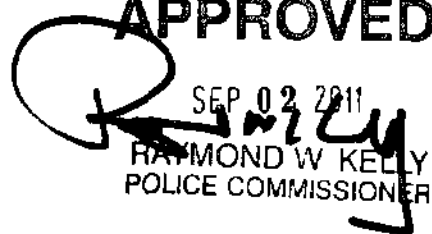
Prior cases have established a baseline of thirty days as an appropriate level of penalty for similar misconduct See, e.g., *Case No 85574/09*, signed June 8, 2010, *Case No 83519/07*, signed Nov 23, 2009, *Case No 84029/08*, signed Aug 4, 2009, *Case No 84026/08*, signed Mar 30, 2009, *Case No 84027/08*, signed Mar 10, 2009, *Case No 83630/08*, signed Oct 7, 2008, *Case No 78778/03*, signed Jan 19, 2004

The Respondent's penalty should be in line with those prior cases The Court notes the Respondent's history, see Conf Mem , infra, but also notes that the instant misconduct was an unintentional error and arose from carelessness Accordingly, the Court recommends that the Respondent forfeit 30 vacation days as a penalty

Respectfully submitted,



David S Weisel
Assistant Deputy Commissioner – Trials

APPROVED
SEP 02 2011

RAYMOND W KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From Assistant Deputy Commissioner – Trials

To Police Commissioner

Subject CONFIDENTIAL MEMORANDUM
POLICE OFFICER HECTOR GONZALEZ
TAX REGISTRY NO 911068
DISCIPLINARY CASE NO 85671/09

In 2010, the Respondent received an overall rating of 3.5 “Highly Competent/Competent.” He was rated 4.0 “Highly Competent” in 2008 and 2009. [REDACTED]

[REDACTED] Based on his overall record, he was placed on Level-II Discipline Monitoring in November 2006.

The Respondent has been the subject of one prior adjudication. In 2005, he forfeited 30 vacation days and was placed on one year of dismissal probation for failing an integrity test when he threw placebo marijuana in the garbage instead of vouchering it. In addition, he failed to properly safeguard his firearm while at home.

For your consideration



David S. Weisel
Assistant Deputy Commissioner – Trials